NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 20.02.2020

CAUSE LIST - 2

PRESENT: 1. Hon'ble Member (J), **Shri Rajeswara Rao Vittanala**
2. Hon'ble Member (T), **Shri Ashutosh Chandra**

CP/CA No.	Purpose	Sec	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CP(CAA) No. 20/BB/2018	For Consideration of NCLAT orders	Sec 230-232 of CA 2013	M/s Shriram Chits (Karnataka) Pvt Ltd	Udayarakan Rangarajan, Advocate		Ganesh R Ghale, Advocate for IT

ADVOCATE FOR PETITIONER/s:

Udayarkan Rangarajan

ADVOCATE FOR RESPONDENT/s:

ORDER

Heard Mr. Udayarakar Rangaranjan, learned Counsel for the Petitioner.

The matter was remanded back by the Hon'ble NCLAT by order dated 03.12.2019. Which reads as under;

" This Appellate Tribunal on hearing the Appellant noticed that the Appellant has followed all the procedure as prescribed under Section 230-232 of the Companies Act, 2013 and read with Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 and the Tribunal earlier, Chennai Bench sanctioned the scheme of amalgamation merger of Transferor Company No.3 (Shriram Chits Tamil Nadu Private Limited) with the Transferee Company (Appellant) by order dated 25th July, 2018 and also sanctioned the scheme of amalgamation/merger of the Transferor Company No.1 (Shri Ram Chits Private Limited) and Transferor Company No.2 (Shriram Chits (Maharashtra) Private Limited) with the Transferee Company i.e. Appellant (Shriram Chits (Karnataka) Private Limited) by order dated 13th February, 2019. In spite of the same, it was not made clear as to why in spite of following all the procedure and no objection by any of the party, except the observations made by the Regional Director0 Registrar of Companies, it was not made clear as to why and under which clause company is requires to take permission/ approval from the appropriate authority, we allowed the Appellant to implead 'Registrar of Chit Funds, Karnataka, Bangalore as party respondent to the appeal to know whether there is any requirement to take prior permission of Registrar of Chits form the purpose of amalgamation or merger scheme under Section 230-232 of the Companies Act, 2013"

The learned Counsel submits that the matter is pending before the Hon'ble NCLT, Mumbai and also directed to take notice in respect of one of the Transferor Company. It is also submitted that he will take notice to the Registrar of the Chit Funds, Karnataka, Bengaluru. In light of that the submission by the Petitioner he is directed to furnish the latest developments of the case pending before the Hon'ble NCLT, Mumbai and also directed the Petitioner to take notice to the Registrar of Chit Funds, Karnataka along with the copy of the Petition and other material papers. The Registry is directed to prepare notice.

Post the case on **~~23~~ 20.03.2020**

MEMBER (T) **MEMBER (J)**

Brunda

Verified
Court Officer